

STUNNER ALERT

WEB APP TERMS AND CONDITIONS - CUSTOMER

Welcome to STUNNER ALERT! We are STUNNER ALERT PTY LTD ABN 88 701 443 129 ('we', 'our' or 'us').

We operate only an online marketplace, booking and payment-facilitation platform known as STUNNER ALERT, through which customers can browse independent Professionals, view Professional Services, communicate in connection with proposed Bookings, make and manage Bookings and facilitate payments relating to those Bookings (Platform).

These Terms govern your access to and use of the Platform, the Platform Services we provide to you, Bookings made through the Platform and payments facilitated in connection with those Bookings. You can view the most up-to-date version of these Terms on our website at [\[Website URL\]](#) (Website). Please read these Terms carefully before creating an Account, using the Platform or making a Booking.

STUNNER ALERT provides the Platform Services only and is the merchant of record only for any Booking Fee payable for those Platform Services. We do not provide the Professional Services advertised, offered or booked through the Platform, for which the relevant Professional is the independent supplier and merchant of record. The Professional Services are supplied directly to you by the relevant independent Professional under a separate Service Contract between you and that Professional, and STUNNER ALERT is not a party to that Service Contract.

Each Booking is a separate transaction and does not create a subscription, recurring term or automatic renewal with STUNNER ALERT.

1 READING AND ACCEPTING THESE TERMS

- (a) In these Terms, capitalised words and phrases have the meanings given to them where they are defined in these Terms or as set out in the Definitions table at the end of these Terms.
- (b) Before completing a Booking, you must actively click the box or button indicating that you accept these Terms. By doing so, you agree to be bound by them. Creating an Account, accessing or using the Platform, making or paying for a Booking, or otherwise using the Platform Services constitutes acceptance only where these Terms were reasonably made available to you and you had reasonable notice that the relevant conduct would constitute acceptance.
- (c) These Terms form a binding agreement between you and STUNNER ALERT PTY LTD in relation to your access to and use of the Platform and the Platform Services. They do not make STUNNER ALERT a party to the separate Service Contract between you and the relevant Professional for the Professional Services.
- (d) We may update these Terms where reasonably required for legal or regulatory compliance, security, fraud prevention, technical or operational requirements, changes to the Platform or Platform Services, or other legitimate business reasons by publishing the revised Terms on the Website or otherwise making them reasonably available to you.
- (e) Any update operates prospectively and does not retrospectively alter the terms applying to a Booking already made, affect an existing Service Contract between you and a Professional or affect accrued rights or liabilities, except where required by law or expressly agreed. Where an update materially and adversely affects continuing users of the Platform, we will give reasonable notice where reasonably practicable. We may make an update effective immediately where reasonably necessary for legal or regulatory compliance, security, fraud prevention or another urgent legitimate reason. Your continued use of the Platform after revised Terms take effect constitutes acceptance only where the revised Terms have been reasonably made available to you.

2 RELATIONSHIP WITH WEBSITE TERMS

- (a) Your use of the Website may also be subject to separate website terms and conditions published on the Website (Website Terms).
- (b) These Terms govern your Account, access to and use of the Platform, use of the Platform Services, Bookings made through the Platform and payments facilitated in connection with those Bookings. The Website Terms apply to your public and general access to and use of the Website.
- (c) The Professional Services are supplied to you by the relevant Professional under a separate Service Contract between you and that Professional. STUNNER ALERT is not a party to that Service Contract merely because the Professional is listed on the Platform or because STUNNER ALERT facilitates the introduction, Booking or payment.
- (d) If there is any inconsistency between these Terms and the Website Terms in relation to an Account, the Platform, the Platform Services or a Booking, these Terms prevail to the extent of the inconsistency. The Website Terms otherwise continue to apply to your general use of the Website.

3 ELIGIBILITY

- (a) By accepting these Terms, creating an Account, using the Platform or making a Booking, you represent and warrant that:
 - (i) you have the legal capacity and authority to enter into a binding agreement with STUNNER ALERT under these Terms;
 - (ii) you are authorised to use any payment method used in connection with a Booking; and
 - (iii) if you are acting on behalf of a company, employer, organisation, government body or other legal entity, you have authority to bind that entity to these Terms.
- (b) You must not create an Account, use the Platform or make a Booking if you do not have the legal capacity or authority to agree to these Terms.
- (c) If you create an Account, make a Booking or use the Platform on behalf of a company, employer, organisation, government body or other legal entity (Represented Entity), references to 'you' or 'your' in these Terms include the Represented Entity and you agree to these Terms on its behalf. You represent and warrant that you are authorised to do so.

4 DURATION

- (a) These Terms commence when you first agree to be bound by them and continue for as long as you have an Account, access or use the Platform or Platform Services, or have any rights or obligations arising in connection with a Booking, unless terminated in accordance with these Terms.
- (b) Each Booking made through the Platform is a separate transaction and does not create a subscription, recurring term or automatic renewal with STUNNER ALERT.
- (c) A Booking may also give rise to a separate Service Contract between you and the relevant Professional for the Professional Services. The duration and termination of that Service Contract are matters between you and the Professional and do not alter the duration of these Terms.
- (d) Termination of these Terms does not affect any rights, obligations or liabilities that accrued before termination or any provision of these Terms that is intended by its nature to continue after termination.

5 THE PLATFORM AND PROFESSIONAL SERVICES

5.1 SCOPE

- (a) Through the Platform, you may browse independent Professionals, view information about their Professional Services, communicate in connection with a proposed Booking, make and manage Bookings and facilitate payments relating to those Bookings.

- (b) STUNNER ALERT provides the Platform Services, which include operating the Platform, introducing Customers to Professionals and facilitating Bookings and payments. STUNNER ALERT does not provide the Professional Services advertised or booked through the Platform.
- (c) The features and functionality of the Platform and the Platform Services available to you will be as described on the Website or Platform from time to time.

5.2 ACCOUNTS

- (a) You must create an account through the Platform (Account) to make or manage a Booking, unless we expressly make another booking process available.
- (b) When creating or using an Account or making a Booking, you may be required to provide information reasonably required to operate the Platform, facilitate a Booking or provide the Platform Services, including your name, contact details, Account credentials, service location and booking information. Payment information may be collected and processed by Stripe or another payment provider used in connection with the Platform.
- (c) You warrant that all information you provide to us through the Platform is accurate, complete, current and not misleading.
- (d) You must keep your Account credentials secure and must promptly notify us if you become aware of any unauthorised access to or use of your Account.
- (e) We may reasonably refuse to create an Account where necessary for legal or regulatory compliance, fraud prevention, security, payment risk or another legitimate Platform integrity reason. Any suspension or termination of an existing Account is subject to the suspension and termination provisions of these Terms.

5.3 OUR ROLE

- (a) STUNNER ALERT operates the Platform as a technology-enabled marketplace and booking platform through which Customers may identify and book independent Professionals. STUNNER ALERT provides the Platform Services only and does not itself provide the Professional Services.
- (b) The Professional, and not STUNNER ALERT:
 - (i) operates their own independent business;
 - (ii) offers and supplies the Professional Services directly to Customers;
 - (iii) determines which Professional Services they offer and the price of those Professional Services;
 - (iv) determines their availability, the Bookings they accept or reject and the geographical areas in which they operate;
 - (v) determines the equipment, tools, products and materials they use in providing the Professional Services;
 - (vi) determines the manner, method and artistic or professional approach used to perform the Professional Services, subject to applicable law and any reasonable Platform or safety requirements; and
 - (vii) is responsible for the performance, quality, suitability, safety and outcome of the Professional Services.
- (c) Professionals listed on the Platform are independent businesses. They are not employees, workers, agents, partners, joint venturers or representatives of STUNNER ALERT merely because they are listed on, communicate through, receive Bookings through or receive payments facilitated through the Platform.
- (d) STUNNER ALERT may facilitate payments relating to Bookings through Stripe Connect or another Payment Provider. Facilitating or processing payments does not make STUNNER ALERT the supplier of the Professional Services or a party to the Service Contract between you and the Professional.

Commented [A1]: Role & Liability

Clause 5.3 expressly establishes STUNNER ALERT as a technology-enabled marketplace and booking platform that provides Platform Services only and does not provide the Professional Services. The Professional operates an independent business and is responsible for the performance, quality, suitability, safety and outcome of the Professional Services.

STUNNER ALERT does not direct, supervise or control the Professional. Clause 17.2 reinforces this allocation of responsibility and provides the corresponding liability protections, subject to applicable law and non-excludable rights.

- (e) Nothing in these Terms gives STUNNER ALERT responsibility for directing, supervising or controlling how a Professional operates their business or performs the Professional Services.
- (f) STUNNER ALERT may establish reasonable eligibility requirements, Platform rules and safety requirements applying to Professionals and may require Professionals to provide information or evidence relating to matters such as identity, qualifications, licences, certifications or insurance. Those requirements regulate access to and use of the Platform and do not make STUNNER ALERT the provider, employer or supervisor of a Professional or constitute a guarantee that a Professional is suitable for a particular Customer or Booking.

5.4 SERVICE CONTRACT WITH THE PROFESSIONAL

- (a) When a Booking is confirmed through the Platform in accordance with the booking process displayed to you, two separate contractual relationships apply:
 - (i) these Terms govern the contract between you and STUNNER ALERT for your access to and use of the Platform and the Platform Services; and
 - (ii) a separate contract is formed directly between you and the relevant Professional for the Professional Services relating to that Booking, being the Service Contract.
- (b) The Professional, and not STUNNER ALERT, is the independent supplier and merchant of record for the Professional Services under the Service Contract and is responsible for performing the Professional Services in accordance with the Service Contract and applicable law. STUNNER ALERT provides the Platform Services under these Terms and does not act as the supplier or merchant of record for the Professional Services.
- (c) STUNNER ALERT is not a party to the Service Contract and does not become a party merely because it operates the Platform, introduces you to the Professional, facilitates the Booking, provides communication functionality or facilitates payment in connection with the Booking.
- (d) Where STUNNER ALERT facilitates payment in connection with a Booking through Stripe Connect or another Payment Provider, it does so as part of the Platform Services. This does not make STUNNER ALERT the supplier of the Professional Services or responsible for the Professional's obligations under the Service Contract.
- (e) Any terms applying specifically to the nature, scope, performance, timing or outcome of the Professional Services form part of the relationship between you and the Professional and do not impose an obligation on STUNNER ALERT unless these Terms expressly state otherwise.

Commented [A2]: Dual Contracts

Clause 5.4 (and also clause 6) expressly provides that a confirmed Booking creates two separate contractual relationships: one between the Customer and STUNNER ALERT for access to the Platform and the Platform Services, and a separate Service Contract directly between the Customer and the Professional for the Professional Services. The Professional is the supplier and merchant of record for the Professional Services, while STUNNER ALERT is not a party to the Service Contract and is merchant of record only for its Booking Fee/Platform Services. Clause 6 repeats this structure at the point a Booking is confirmed.

5.5 DISCLAIMER ABOUT PROFESSIONAL SERVICES

- (a) To the maximum extent permitted by law, STUNNER ALERT does not warrant or guarantee:
 - (i) the quality, suitability, safety, standard or outcome of any Professional Services;
 - (ii) any particular artistic, aesthetic, photographic, styling, beauty or other subjective result or outcome from the Professional Services;
 - (iii) that the Professional Services will meet your particular tastes, preferences, expectations or subjective standards of satisfaction;
 - (iv) that a Professional will commence, perform or complete the Professional Services at an exact time or within an exact duration where reasonable or minor timing variations arise in connection with the Professional's performance of the Professional Services;
 - (v) the accuracy or completeness of information supplied by a Professional about their Professional Services, qualifications, licences, experience, availability or other attributes; or
 - (vi) any particular result from a Booking or the Professional Services.
- (b) You acknowledge that some Professional Services involve personal judgement, artistic discretion, individual preferences and results that may vary between Customers. A

Commented [A3]: Disclaimer of Results

The Terms expressly disclaim STUNNER ALERT's responsibility for the quality, suitability, safety or outcome of Professional Services, any particular artistic, aesthetic, photographic, styling or beauty result, subjective satisfaction or expectations, and reasonable or minor timing variations.

The Terms also make clear that STUNNER ALERT does not employ, direct, supervise or perform the Professional Services. All disclaimers remain subject to the Australian Consumer Law and other rights that cannot lawfully be excluded

difference between your subjective expectations and the result of Professional Services does not of itself constitute a failure by STUNNER ALERT to provide the Platform Services.

- (c) You are responsible for considering the information made available about a Professional and their Professional Services before making a Booking and, where relevant, communicating any particular preferences, requirements or expectations directly to the Professional.
- (d) Nothing in this section excludes, restricts or modifies any consumer guarantee, right, remedy or other protection under the Australian Consumer Law or any other applicable law that cannot lawfully be excluded, restricted or modified.

5.6 PLATFORM ACCESS AND SOFTWARE

- (a) Subject to your compliance with these Terms, we grant you a limited, non-exclusive, non-transferable and non-sublicensable right to access and use the Platform for your personal use for the purpose of accessing the Platform Services and making and managing Bookings.
- (b) We may update, modify or improve the Platform's functionality, features, processes, presentation or technical elements for reasonable operational, technical, security, legal or legitimate commercial reasons, provided that any material exercise of this right is reasonable and proportionate.
- (c) A change to the Platform will not retrospectively alter the terms applying to a Booking already confirmed, affect accrued rights or liabilities or alter the Service Contract between you and a Professional, except where required by law or expressly agreed by the relevant parties.

6 BOOKINGS AND CONFIRMATION

- (a) You may request or make a Booking through the Platform by selecting a Professional, the relevant Professional Services and the other booking details requested through the Platform.
- (b) Before submitting a Booking, you must review the Professional Services selected, the scheduled date, time and location, the Total Booking Price and any other material Booking information displayed through the Platform.
- (c) A Booking is confirmed when confirmation is displayed or otherwise communicated to you through the Platform and any payment required at the time of confirmation has been successfully processed in accordance with the Fees and Payment provisions of these Terms.
- (d) A confirmed Booking gives rise to two separate contractual relationships:
 - (i) your contract with STUNNER ALERT under these Terms for the Platform Services, including the marketplace, booking and payment-facilitation services provided in connection with the Booking; and
 - (ii) the separate Service Contract between you and the relevant Professional for the Professional Services.
- (e) STUNNER ALERT facilitates the Booking as part of the Platform Services but does not provide the Professional Services and does not become a party to the Service Contract.
- (f) You are responsible for checking the details of a Booking before confirming it and for ensuring that all information you provide in connection with the Booking, including the service location, access information and any information reasonably relevant to the Professional Services, is accurate, complete and current.
- (g) Payments relating to a Booking will be processed in accordance with the Fees and Payment provisions of these Terms. This includes any Initial Payment required when the Booking is confirmed and any Balance Payment authorised to be charged before the scheduled commencement of the Professional Services.
- (h) A Booking may not be confirmed or maintained where a payment required under these Terms is declined, reversed or otherwise unsuccessful and is not remedied in accordance with the applicable payment process.

- (i) Any cancellation, rescheduling, late arrival, no-show, refund or Platform Credit relating to a Booking is subject to the applicable provisions of these Terms and the applicable Service Contract between you and the Professional.

7 CANCELLATIONS, RESCHEDULING, NO-SHOWS AND PLATFORM CREDITS

7.1 CUSTOMER CANCELLATIONS

- (a) You may cancel a Booking through the cancellation process made available through the Platform.
- (b) If you cancel a Booking more than 24 hours before the scheduled commencement time of the Professional Services, we will issue you a Platform Credit for the amount paid by you, less any reasonable Admin Fee disclosed before confirmation and reflecting STUNNER ALERT's actual administrative costs, subject to any refund or other remedy required by applicable law.
- (c) If you cancel a Booking within 24 hours before the scheduled commencement time of the Professional Services, a late cancellation fee equal to 50% of the Total Booking Price will apply and, subject to applicable law, the remaining 50% of the Total Booking Price will be issued to you as a Platform Credit.
- (d) You authorise any amount properly payable under this section to be charged, retained, adjusted, refunded or credited using the payment method and payment arrangements applying to the Booking, including through Stripe or another applicable Payment Provider.
- (e) STUNNER ALERT may facilitate the collection, adjustment, refund or credit of amounts arising from a cancellation through the Platform or the applicable Payment Provider. In doing so, STUNNER ALERT does not become the supplier of the Professional Services or a party to the Service Contract between you and the Professional.
- (f) Nothing in this section excludes, restricts or modifies any consumer guarantee, right, remedy or other protection under the Australian Consumer Law or any other applicable law that cannot lawfully be excluded, restricted or modified.

Commented [A4]: Less than 24 hours before scheduled booking

A cancellation within 24 hours attracts a late cancellation fee equal to 50% of the Total Booking Price, with the remaining 50% issued as Platform Credit, subject to applicable law. The Customer also authorises amounts properly payable under the cancellation provisions to be charged, retained, adjusted, refunded or credited using the payment method applying to the Booking through Stripe or the applicable Payment Provider

Commented [A5]: More than 24 hours before scheduled booking

Where the Customer cancels more than 24 hours before the scheduled commencement time, the amount paid is issued as Platform Credit, less any reasonable Admin Fee disclosed before confirmation and reflecting STUNNER ALERT's actual administrative costs, subject to any refund or remedy required by applicable law.

7.2 RESCHEDULING

- (a) You may request to reschedule a Booking through the Platform.
- (b) Any rescheduling of the Professional Services is subject to the availability and agreement of the relevant Professional and is not effective until the rescheduled Booking is confirmed through the Platform.
- (c) STUNNER ALERT may facilitate a rescheduling request but does not control the Professional's availability or require a Professional to accept a proposed new date, time or other change to the Professional Services.
- (d) Any change to the price, scope or other terms of the Professional Services arising from an agreed rescheduling is a matter between you and the Professional under the Service Contract and must be reflected through the Platform where applicable.

7.3 CUSTOMER NO-SHOWS AND ACCESS

- (a) If you fail to attend a Booking, are not available at the agreed service location or otherwise fail to make yourself reasonably available for the Professional to perform the Professional Services without having cancelled the Booking in accordance with these Terms, you may be treated as a no-show.
- (b) If you are treated as a no-show, subject to applicable law, 100% of the Total Booking Price may be charged or retained.
- (c) If you are more than 20 minutes late for a Booking, the Professional may elect to continue with the Professional Services where reasonably practicable or cancel the Booking. If the Professional cancels the Booking because you are more than 20 minutes late, a cancellation fee equal to 50% of the Total Booking Price will apply and, subject to applicable law, the remaining 50% of the Total Booking Price will be issued to you as a Platform Credit.
- (d) If you fail to provide reasonable access to the agreed service location, provide materially inaccurate access information or otherwise prevent the Professional from commencing the

Commented [A6]: No-show

A Customer who fails to attend or make themselves reasonably available for the Professional may be treated as a no-show, in which case, subject to applicable law, 100% of the Total Booking Price may be charged or retained.

Commented [A7]: Late Arrival

If the Customer is more than 20 minutes late, the Professional may either continue with the Professional Services where reasonably practicable or cancel the Booking. If cancelled because of the Customer's late arrival, a cancellation fee equal to 50% of the Total Booking Price applies and the remaining 50% is issued as Platform Credit, subject to applicable law

Professional Services at the agreed time, the circumstances may be treated as a late arrival or no-show where reasonably appropriate having regard to the circumstances.

- (e) STUNNER ALERT may facilitate the charging, retention, adjustment, refund or credit of amounts arising under this section through the Platform or the applicable Payment Provider. In doing so, STUNNER ALERT does not become the supplier of the Professional Services or a party to the Service Contract between you and the Professional.
- (f) Nothing in this section excludes, restricts or modifies any consumer guarantee, right, remedy or other protection under the Australian Consumer Law or any other applicable law that cannot lawfully be excluded, restricted or modified.

7.4 PROFESSIONAL CANCELLATIONS AND NO-SHOWS

- (a) A Professional is responsible for complying with their obligations under the Service Contract in relation to cancellation, attendance and performance of the Professional Services.
- (b) If a Professional cancels a Booking, fails to attend or is unable to provide the Professional Services, STUNNER ALERT may facilitate communications between you and the Professional and may assist you to arrange an alternative Booking through the Platform.
- (c) If the Professional cancels, fails to attend or fails to provide the Professional Services, you may elect to receive either a prompt refund to the original payment method of all amounts paid for the affected Professional Services or a Platform Credit of equal value, without limiting any additional remedy available under the Service Contract or applicable law.
- (d) STUNNER ALERT may facilitate any refund, payment adjustment or Platform Credit arising in those circumstances through the Platform or the applicable Payment Provider without becoming the supplier of the Professional Services or a party to the Service Contract.
- (e) Nothing in this section excludes, restricts or modifies any consumer guarantee, right, remedy or other protection under the Australian Consumer Law or any other applicable law that cannot lawfully be excluded, restricted or modified.

7.5 PLATFORM CREDITS

- (a) A Platform Credit issued under these Terms may be applied towards a future Booking made through the Platform.
- (b) Where these Terms provide for a Platform Credit following a cancellation, late arrival, no-show or other event affecting a Booking, the amount of the Platform Credit will be calculated in accordance with the applicable provision of these Terms, including any applicable Admin Fee or cancellation fee.
- (c) The amount of a Platform Credit and any conditions of use will be clearly displayed through the Platform or notified to you when the Platform Credit is issued, and a Platform Credit will not expire earlier than 36 months after issue or be subject to conditions that unreasonably restrict its use. We will not retrospectively reduce the value of a Platform Credit or shorten an expiry period after it has been issued.
- (d) Unless required by applicable law, a Platform Credit is not redeemable for cash and may only be used through the Platform in accordance with any reasonable conditions disclosed when the Platform Credit is issued.
- (e) A Platform Credit does not prevent you from exercising any right to a refund or other remedy that cannot lawfully be excluded, restricted or modified.

8 COMPLAINTS ABOUT PROFESSIONAL SERVICES

- (a) If you have a complaint concerning the quality, performance, safety, conduct, cancellation, non-performance or outcome of Professional Services, you should raise the complaint with the relevant Professional through the communication or complaint functionality made available through the Platform.
- (b) The Professional is responsible for responding to and dealing with complaints, claims and remedies arising from the Professional Services they supply under the Service Contract and applicable law.

- (c) STUNNER ALERT may facilitate communications between you and the Professional, request information reasonably required to understand or administer a complaint, or take action concerning use of the Platform where appropriate. By doing so, STUNNER ALERT does not become the supplier of the Professional Services, assume the Professional's obligations under the Service Contract or become responsible for determining the outcome of a dispute between you and the Professional.
- (d) If your complaint concerns the Platform or Platform Services rather than the Professional Services, you may raise the complaint directly with STUNNER ALERT using the contact details or functionality made available through the Platform or Website.
- (e) Nothing in this section prevents you from exercising any consumer guarantee, statutory right or other remedy against STUNNER ALERT or a Professional that cannot lawfully be excluded, restricted or modified.

9 REVIEWS AND RATINGS

- (a) Where the Platform allows you to submit a rating, review or other feedback concerning a Professional or Professional Services, you must ensure that the content you provide:
 - (i) is based on your genuine experience of the relevant Booking or Professional Services;
 - (ii) is accurate and not false, misleading or deceptive;
 - (iii) does not contain unlawful, defamatory, threatening, abusive, discriminatory or harassing material; and
 - (iv) does not disclose another person's personal, confidential or sensitive information without lawful authority.
- (b) STUNNER ALERT may review and moderate ratings, reviews and other feedback before or after publication through the Platform.
- (c) STUNNER ALERT may delay publication of, restrict, remove or decline to publish a rating or review where we reasonably consider that:
 - (i) it may breach these Terms or applicable law;
 - (ii) it contains materially false, misleading, irrelevant, abusive or inappropriate content;
 - (iii) it raises a serious complaint, safety issue or dispute that reasonably requires further information or investigation before publication; or
 - (iv) moderation is otherwise reasonably necessary to protect the integrity and proper operation of the Platform.
- (d) Where a rating or review raises a serious allegation or materially adverse complaint concerning a Professional, STUNNER ALERT may give the Professional a reasonable opportunity to provide information or respond to the matters raised before deciding whether and in what form the rating or review will be published or remain available through the Platform.
- (e) STUNNER ALERT may request relevant information from you or the Professional for the purpose of reviewing a disputed rating or review and may facilitate communications between you and the Professional in an attempt to resolve the underlying issue.
- (f) STUNNER ALERT's moderation or investigation of a rating, review or dispute does not make STUNNER ALERT the supplier of the Professional Services, a party to the Service Contract or responsible for determining any right, remedy or liability arising from the Professional Services.
- (g) STUNNER ALERT does not guarantee that every rating, review or response submitted through the Platform will be published or remain published. Any moderation decision will be made reasonably having regard to these Terms, applicable law and the integrity and safety of the Platform.
- (h) A complaint, review or rating concerning the Professional Services does not limit any consumer guarantee, statutory right, complaint process or other remedy available to you or the Professional that cannot lawfully be excluded, restricted or modified.

10 DATA HOSTING AND STORAGE

- (a) We may use third-party hosting, database, infrastructure and technology service providers to operate the Platform and store or process information provided in connection with your Account, use of the Platform or a Booking.
- (b) We intend to use Australian data centres where appropriate, but we do not guarantee that all information will be stored or processed exclusively in Australia. Third-party service providers and their subprocessors may store, process or have access to information from locations outside Australia as described in our Privacy Policy.
- (c) We will take reasonable steps in relation to hosting, security and availability arrangements within our control. However, to the extent permitted by law, you acknowledge that:
 - (i) third-party hosting, database, infrastructure or technology services may experience errors, defects, outages, interruptions or other technical issues;
 - (ii) the Platform or information made available through it may not be available or accessible at all times;
 - (iii) no method of electronic storage or transmission is completely secure and we cannot guarantee that information will be protected from every instance of unauthorised access, use, loss, destruction, alteration, malware, ransomware, viruses or other interference; and
 - (iv) backup or recovery systems may be unavailable, incomplete or affected by errors following a data loss or system failure caused by circumstances outside our reasonable control, but this does not exclude responsibility for our failure to take reasonable care in relation to matters within our control.
- (d) We may disclose information to third-party service providers where reasonably necessary to operate the Platform, provide the Platform Services, facilitate Bookings or payments, or otherwise perform our obligations under these Terms, subject to our Privacy Policy and applicable law.
- (e) Our collection, use, disclosure, storage and handling of personal information is further described in our Privacy Policy, and we will notify you without undue delay after becoming aware of a data breach affecting your personal information where the breach is reasonably likely to cause you serious harm or notification is required by applicable law.
- (f) Nothing in this section excludes, restricts or modifies any right, guarantee, remedy or other protection that cannot lawfully be excluded, restricted or modified.

11 YOUR RESPONSIBILITIES

11.1 YOUR INFORMATION

- (a) You must provide us with the information reasonably required to create and maintain your Account, operate the Platform, facilitate a Booking and provide the Platform Services, including your contact details, service location, booking details and any other information requested through the Platform.
- (b) You warrant that all information you provide to us through the Platform or in connection with a Booking is accurate, complete, current and not misleading.
- (c) You must ensure that the service location and any access information you provide in connection with a Booking are accurate and sufficient to enable the Professional to attend and perform the Professional Services.
- (d) To the extent permitted by law, STUNNER ALERT is not responsible for any loss, delay, failed Booking or other consequence to the extent caused or contributed to by information you provide being incomplete, inaccurate, out of date or misleading.

11.2 YOUR OBLIGATIONS

- (a) You must comply with these Terms when accessing or using the Platform or Platform Services.
- (b) You must not, and must not encourage, assist or permit any other person to:

- (i) use the Platform for any unlawful, fraudulent, abusive or improper purpose;
 - (ii) provide false, misleading or fraudulent information through the Platform or in connection with an Account or Booking;
 - (iii) impersonate another person or misrepresent your identity or authority;
 - (iv) copy, reproduce, republish, distribute, sell, resell, sublicense, commercially exploit or otherwise make available any material part of the Platform except as expressly permitted by these Terms or by law;
 - (v) scrape, crawl, data mine, harvest or otherwise systematically extract data, listings, content or information from the Platform;
 - (vi) use any bot, script, software or other automated process to access, query or interact with the Platform except where expressly authorised by us;
 - (vii) modify, adapt, reverse engineer, decompile, disassemble or otherwise attempt to derive the source code, underlying structure or other protected components of the Platform, except to the extent such restriction is prohibited by law;
 - (viii) circumvent, disable, interfere with or attempt to defeat any security, access control or technological protection applying to the Platform;
 - (ix) remove, obscure or alter any copyright, trade mark, attribution, proprietary notice or other notice appearing on the Platform;
 - (x) use the Platform in a manner that infringes or misuses any Intellectual Property Rights, privacy rights or other rights of STUNNER ALERT, a Professional or any other person;
 - (xi) interfere with, disrupt, damage or place an unreasonable burden on the Platform or any systems, networks or infrastructure used to provide it;
 - (xii) access or attempt to access another person's Account or any part of the Platform that you are not authorised to access;
 - (xiii) share your Account credentials with another person or allow another person to use your Account except where expressly permitted by us;
 - (xiv) use information obtained through the Platform to harass, threaten, abuse, discriminate against or otherwise engage in unlawful or inappropriate conduct towards a Professional or any other person; or
 - (xv) use the Platform in a way that is materially inconsistent with its intended purpose as described in these Terms.
- (c) You must take reasonable precautions to maintain the confidentiality and security of your Account credentials and are responsible for activity you authorise through your Account and for loss to the extent caused or contributed to by your failure to take those precautions. You must promptly notify us if you become aware of suspected or actual unauthorised access to or use of your Account.

11.3 **BOOKING AND PREMISES RESPONSIBILITIES**

- (a) Where Professional Services are to be provided at your home, hotel, workplace or another location arranged by you, you must take reasonable steps to ensure that the location is safe, accessible and reasonably suitable for the Professional to enter, remain at and perform the Professional Services.
- (b) You must provide any access instructions reasonably required for the Professional to attend the service location and must ensure that your conduct, and the conduct of any person or animal at the location within your reasonable control, does not create an unreasonable health or safety risk, interfere with the Professional's performance of the Professional Services or prevent the Professional from safely entering or leaving the location.
- (c) You must not engage in, encourage or permit, to the extent within your reasonable control, conduct or circumstances involving:
 - (i) violence, threats, harassment, intimidation, abuse or discriminatory conduct;

Commented [A8]: Safety & Protection

Customers must provide a safe, accessible and reasonably suitable service location and must not permit violence, threats, harassment, sexually inappropriate conduct, serious intoxication or impairment, dangerous animals, unsafe premises or other material safety risks. The Professional may refuse entry, refuse to commence, stop work and leave the premises where they reasonably consider the circumstances unsafe.

The Professional may also contact emergency services. Where the unsafe circumstances are caused or materially contributed to by the Customer or a person or animal under their control, the Booking may be treated as a Customer no-show and 100% of the Total Booking Price may be charged or retained with no Platform Credit, subject to applicable law

- (ii) sexual harassment, sexually inappropriate conduct or other serious misconduct;
 - (iii) intoxication or impairment that creates a material safety risk or makes it unreasonable for the Professional to commence or continue the Professional Services;
 - (iv) unsafe, unlawful or seriously inappropriate conduct;
 - (v) uncontrolled or dangerous animals;
 - (vi) unsafe premises, equipment, access conditions or other physical hazards; or
 - (vii) any other circumstance that creates a material risk to the health, safety or wellbeing of the Professional or another person.
- (d) A Professional may refuse to enter the service location, refuse to commence the Professional Services, suspend the Professional Services or leave the service location where the Professional reasonably considers that there is a material health or safety risk, threatening, abusive or inappropriate conduct, serious intoxication or impairment, unlawful conduct or another circumstance that makes it unsafe or unreasonable to commence or continue the Professional Services.
- (e) Where the relevant issue can reasonably be remedied without exposing the Professional or another person to further risk, the Professional may give you a reasonable opportunity to remedy the issue before refusing to commence or discontinuing the Professional Services. A Professional is not required to remain at the service location or provide that opportunity where they reasonably consider that there is an immediate or serious safety risk.
- (f) You must not prevent, obstruct or unreasonably delay a Professional from leaving the service location where the Professional elects to leave for safety reasons. The Professional may contact emergency services or take other reasonable steps to protect themselves or another person where they reasonably consider this necessary.
- (g) Where a Professional reasonably refuses to commence or discontinues the Professional Services because of your breach of this section or circumstances caused or materially contributed to by you or a person or animal within your reasonable control, the Booking may be treated as a Customer no-show and, subject to applicable law, 100% of the Total Booking Price may be charged or retained and no Platform Credit will be issued.
- (h) STUNNER ALERT may facilitate the charging, retention, adjustment, refund or credit of amounts arising under this section through the Platform or the applicable Payment Provider. In doing so, STUNNER ALERT does not become the supplier of the Professional Services or a party to the Service Contract between you and the Professional.
- (i) Nothing in this section excludes, restricts or modifies any consumer guarantee, right, remedy or other protection under the Australian Consumer Law or any other applicable law that cannot lawfully be excluded, restricted or modified.

11.4 OFF-PLATFORM DEALINGS

- (a) You must not use information obtained through the Platform to circumvent the Platform's booking or payment arrangements in relation to Professional Services introduced, arranged or booked through the Platform.
- (b) Without limiting the above, you must not:
- (i) cancel or attempt to cancel a Booking for the purpose of arranging substantially the same Professional Services directly with the Professional outside the Platform in order to avoid the Platform's booking or payment arrangements;
 - (ii) request, encourage or agree with a Professional to accept payment outside the Platform for Professional Services that are required to be booked or paid for through the Platform; or
 - (iii) use contact or other information obtained through the Platform for the purpose of intentionally bypassing the Platform in connection with a Booking.
- (c) Nothing in this section prevents you from communicating directly with a Professional where reasonably necessary in connection with a Booking or the performance of Professional Services booked through the Platform.

- (d) If you become aware of misuse of the Platform, suspected unauthorised access to your Account or a material issue affecting your ability to use the Platform, you should notify us using the contact details or functionality made available through the Platform or Website.
- (e) Any suspension or termination of your Account or access to the Platform arising from a breach of this section will be governed by the suspension and termination provisions of these Terms.

12 FEES AND PAYMENT

12.1 FEES

- (a) The Professional determines the price for the Professional Services. Before you confirm a Booking, the Platform will display the Total Booking Price and, to the extent applicable, the components making up that price, including:
 - (i) the price of the Professional Services;
 - (ii) any applicable peak-time surcharge, travel fee, parking fee or other Additional Charge; and
 - (iii) GST and any other amount required to be included or disclosed by applicable law.
- (b) You must pay the Total Booking Price in accordance with the payment schedule set out in the Payment Processing section of these Terms.
- (c) The Total Booking Price displayed before you confirm the Booking is the total amount payable by you in connection with that Booking, subject only to:
 - (i) any Additional Charge that cannot reasonably be determined in advance and whose basis of calculation was disclosed to you before confirmation;
 - (ii) any change to the Professional Services or other Booking details that you subsequently agree with the Professional; or
 - (iii) any adjustment otherwise permitted by these Terms or required by applicable law.
- (d) A later change to a Professional's prices or other charges displayed through the Platform will not retrospectively alter the Total Booking Price for a Booking that has already been confirmed, except in the circumstances described above.

Commented [A9]: ACL Compliance

Before confirmation, the Platform must display the Total Booking Price and applicable price components, including the price of the Professional Services, peak-time surcharges, travel fees, parking fees or other Additional Charges, GST and other mandatory amounts required to be disclosed by law. Where an Additional Charge cannot reasonably be calculated in advance, the basis on which it will be calculated must be disclosed. This is intended to provide upfront component pricing consistently with Australian Consumer Law requirements.

12.2 PAYMENT PROCESSING

- (a) All payments made in connection with Bookings are processed through Stripe Connect.
- (b) By confirming a Booking, you authorise STUNNER ALERT, through Stripe Connect, to pre-authorise the payment method provided for the Total Booking Price and to charge the Total Booking Price in accordance with the payment schedule set out below. The Total Booking Price includes all amounts payable by you in connection with the Booking that are required to be included in the displayed price under applicable law, including applicable Additional Charges and GST.
- (c) Payment of the Total Booking Price will be collected as follows:
 - (i) an Initial Payment equal to 20% of the Total Booking Price will be charged when the Booking is confirmed;
 - (ii) the Balance Payment, being the remaining 80% of the Total Booking Price, will be charged approximately 24 hours before the scheduled commencement time of the Professional Services and will be held or processed through the applicable Stripe Connect payment arrangements pending payout or release in accordance with those arrangements and these Terms.
- (d) The Initial Payment and Balance Payment describe only the timing in which the Total Booking Price is collected from you. They do not represent or disclose the proportion of the Total Booking Price ultimately attributable or payable to STUNNER ALERT or the Professional.

Commented [A10]: Payment Flow

All Booking payments are processed through Stripe Connect and the Customer expressly authorises STUNNER ALERT, through Stripe Connect, to pre-authorise the payment method for the Total Booking Price, process the Booking payments, retain the payment method as permitted and charge later amounts properly payable under the Terms. The payment provisions describe the amounts and timing of payments required from the Customer without identifying the internal allocation of those amounts between STUNNER ALERT and the Professional.

- (e) Where a Booking is made less than 24 hours before the scheduled commencement time of the Professional Services, the Initial Payment and Balance Payment may be charged at or after confirmation of the Booking in accordance with the payment process displayed through the Platform.
- (f) By confirming a **Booking**, you authorise Stripe Connect to process payments and securely store or otherwise retain the payment method used for the Booking to the extent permitted by Stripe's applicable terms and applicable law, and to use that payment method to collect later amounts that become payable in connection with the Booking under these Terms, including the Balance Payment.
- (g) You authorise the applicable payment method to be charged for:
 - (i) the Initial Payment;
 - (ii) the Balance Payment;
 - (iii) any cancellation, late-arrival, no-show or other amount that becomes payable in accordance with these Terms and the applicable Service Contract;
 - (iv) any Additional Charge that you have agreed to pay or that was disclosed in accordance with these Terms;
 - (v) any amount required to correct a genuine payment-processing error.
- (h) STUNNER ALERT may facilitate the collection, processing, allocation, adjustment, refund or credit of payments relating to a Booking through the applicable Payment Provider. Doing so does not make STUNNER ALERT the supplier of the Professional Services or a party to the Service Contract between you and the Professional.
- (i) Payments processed through Stripe may also be subject to Stripe's applicable terms, conditions, authentication requirements and privacy policy. Your payment information may be collected, stored and processed by Stripe for the purpose of processing payments relating to your Booking.
- (j) If a payment required for a Booking is declined, reversed or otherwise unsuccessful, we may notify you through the Platform, push notification, SMS or email and provide a Stripe "Pay Now" or payment-update link through which you can update your payment method or make the outstanding payment.
- (k) Where we notify you of a **failed payment**, you must make the outstanding payment or provide a valid payment method within the rectification period specified in the notice, which will ordinarily be between 2 and 4 hours and may vary reasonably having regard to the time remaining before the scheduled commencement time of the Professional Services.
- (l) If the required payment is not successfully processed within the applicable timeframe, the Booking may be suspended or cancelled and any applicable cancellation, late-arrival or no-show provisions of these Terms may apply according to the circumstances.
- (m) Stripe or its payment infrastructure may experience delays, errors, interruptions, reversals or other payment-processing issues outside STUNNER ALERT's reasonable control. We may take reasonable steps, or request the applicable Payment Provider to take reasonable steps, to correct a genuine payment-processing error so that the payment reflects the amount properly payable for the relevant Booking, but this does not permit us to retrospectively increase the agreed Total Booking Price.

Commented [A11]: Payment Schedule

Addressed as to the agreed 20%/80% payment schedule. An Initial Payment equal to 20% of the Total Booking Price is charged when the Booking is confirmed and the remaining 80% Balance Payment is charged approximately 24 hours before the scheduled commencement time. Stripe Connect is also authorised to securely store or retain the payment method for the later Balance Payment.

The Initial Payment and Balance Payment describe the timing of collection from the Customer only and do not identify the proportion of the Total Booking Price ultimately attributable or payable to STUNNER ALERT or the Professional.

The Terms do not use the term "escrow" and instead describe the Balance Payment as being held or processed through the applicable Stripe Connect payment arrangements pending payout or release.

Commented [A12]: Failed Payments

If a payment is declined, reversed or otherwise unsuccessful, the Customer may be notified through the Platform, push notification, SMS or email and may be provided with a Stripe "Pay Now" or payment-update link. The Customer must rectify the failed payment within the period specified in the notice, ordinarily between 2 and 4 hours depending on the time remaining before the Booking. Failure to rectify may result in the Booking being suspended or cancelled and the applicable cancellation, late-arrival or no-show provisions applying.

12.3 GST

- (a) Amounts displayed through the Platform will include GST to the extent required by applicable law.
- (b) The Total Booking Price displayed before you confirm a Booking will include any mandatory or unavoidable charges that are required to be included in the displayed price under applicable law, including any applicable peak-time surcharge, travel fee or other mandatory Additional Charge.
- (c) Where a parking fee or other Additional Charge cannot reasonably be determined before the Booking is confirmed, the Platform may disclose that the amount will be separately payable and the basis on which it will be determined, to the extent required by applicable law.

- (d) GST will otherwise be dealt with in accordance with applicable law.

12.4 REFUNDS, CREDITS AND PAYMENT DISPUTES

- (a) Any cancellation fee, Platform Credit, refund or amount charged or retained following a cancellation, late arrival, no-show or safety-related discontinuation of Professional Services will be determined in accordance with the applicable cancellation, no-show, Booking and premises, and Platform Credit provisions of these Terms.
- (b) Where an amount is to be refunded, adjusted or issued as a Platform Credit under these Terms, STUNNER ALERT may facilitate the corresponding payment adjustment through Stripe or the applicable Payment Provider.
- (c) Where a refund, adjustment or other remedy arises from the quality, performance, cancellation, non-performance or outcome of the Professional Services, the relevant Professional remains responsible for their obligations under the Service Contract and applicable law. STUNNER ALERT may facilitate communications, refunds, payment adjustments or credits between you and the Professional without becoming the supplier of the Professional Services or a party to the Service Contract.
- (d) A dispute concerning the Professional Services does not of itself establish that STUNNER ALERT failed to provide the Platform Services. A dispute concerning STUNNER ALERT's own Platform Services will be considered separately from a dispute concerning the Professional Services, having regard to the circumstances and applicable law.
- (e) Nothing in this section excludes, restricts or modifies any consumer guarantee, right, remedy or other protection under the Australian Consumer Law or any other applicable law that cannot lawfully be excluded, restricted or modified.

12.5 CHARGEBACKS AND PAYMENT DISPUTES

- (a) If you believe that an amount has been charged incorrectly or wish to dispute a payment relating to a Booking, you should notify us through the Platform or using the contact details made available on the Website. Where the underlying dispute concerns the Professional Services, you should also raise the matter with the relevant Professional through the Platform where reasonably practicable.
- (b) If you initiate a chargeback or other payment dispute, you must provide accurate and not misleading information about the relevant payment, Booking and circumstances giving rise to the dispute.
- (c) Where a payment dispute concerns the Professional Services, STUNNER ALERT may provide relevant transaction information and facilitate communications between you, the Professional and the applicable Payment Provider without assuming responsibility for the Professional Services or the Professional's obligations under the Service Contract.
- (d) Where a payment dispute concerns both the Professional Services and the Platform Services, the relevant aspects of the dispute may be considered separately having regard to the service or obligation to which each aspect relates.
- (e) Nothing in this section requires you to waive or refrain from exercising a chargeback, consumer guarantee, payment dispute or other right or remedy that cannot lawfully be excluded, restricted or modified.

13 INTELLECTUAL PROPERTY AND DATA

13.1 OUR INTELLECTUAL PROPERTY

- (a) We own or license all Intellectual Property Rights in the Platform and the materials made available through it, including the software, design, functionality, text, graphics, logos, trade marks, booking functionality, presentation and other content created by or for us (Platform Content).
- (b) Platform Content does not include information, listings, photographs or other content supplied by a Professional or other third party, except to the extent that STUNNER ALERT separately owns or licenses rights in that content.
- (c) Nothing in these Terms transfers ownership of any Intellectual Property Rights to you.

13.2 LICENCE TO YOU

- (a) Subject to your compliance with these Terms, we grant you a limited, non-exclusive, non-transferable and non-sublicensable licence to access and use the Platform and Platform Content for your personal use in connection with the Platform Services and your Bookings.
- (b) Except as expressly permitted by these Terms or by law, you must not:
 - (i) reproduce, modify, adapt, publish, distribute, communicate, sell, resell, sublicense or commercially exploit the Platform or Platform Content;
 - (ii) copy or use Platform Content to create or develop a competing platform, product or service;
 - (iii) remove, obscure or alter any copyright, trade mark, attribution or proprietary notice appearing on the Platform; or
 - (iv) use the Platform or Platform Content in a manner that infringes or misuses any Intellectual Property Rights of STUNNER ALERT or any other person.

13.3 YOUR DATA

- (a) You retain any rights you have in information and content you provide to us through the Platform, including information provided in connection with your Account or a Booking (User Data).
- (b) You grant us and our service providers a non-exclusive, royalty-free licence to collect, use, reproduce, process, store and disclose User Data to the extent reasonably necessary to:
 - (i) provide, operate, maintain and administer the Platform and Platform Services;
 - (ii) create and maintain your Account;
 - (iii) facilitate and administer Bookings between you and Professionals;
 - (iv) provide relevant booking, service location and other information to the Professional where reasonably necessary for the Professional to perform the Professional Services;
 - (v) facilitate payments and payment processing in connection with a Booking;
 - (vi) communicate with you about your Account, Bookings and use of the Platform;
 - (vii) maintain, secure, support and improve the Platform and Platform Services; and
 - (viii) otherwise perform our obligations or exercise our rights under these Terms.
- (c) We may provide User Data to Professionals and third-party service providers where reasonably necessary to provide the Platform Services, facilitate a Booking or payment, or otherwise operate the Platform, subject to our Privacy Policy and applicable law.
- (d) You warrant that you are entitled to provide User Data to us and to authorise us to use it in accordance with these Terms.
- (e) Our collection, use, disclosure, storage and handling of personal information is further described in our Privacy Policy. Nothing in this section permits us to handle personal information in a manner inconsistent with our Privacy Policy or applicable law.

14 THIRD PARTY CONTENT AND SERVICES

14.1 THIRD PARTY CONTENT

- (a) The Platform may display or make available content, information, photographs, listings, profiles, service descriptions, reviews or other materials supplied by Professionals or other third parties (Third Party Content).
- (b) Third Party Content remains owned by, or licensed to, the relevant Professional or third party. Nothing in these Terms transfers ownership of any Intellectual Property Rights in Third Party Content to you or STUNNER ALERT.
- (c) Professionals and other third parties are responsible for the accuracy, completeness, currency and lawfulness of the Third Party Content they provide. STUNNER ALERT may moderate, remove or restrict Third Party Content in accordance with these Terms but does

not, merely by making that content available through the Platform, endorse or guarantee its accuracy, quality, suitability or reliability.

- (d) Your use of Third Party Content may be subject to additional licence terms, attribution requirements, notices or other restrictions imposed by the relevant rights holder. Where those requirements are made available through the Platform, you must comply with them.
- (e) You must not remove, obscure or alter any attribution, copyright notice, trade mark, source acknowledgement, licence notice or other proprietary notice accompanying Third Party Content.
- (f) Any reference to, attribution of or identification of a Professional or other third-party provider does not of itself mean that STUNNER ALERT endorses, guarantees or is affiliated with that person other than through the marketplace relationship described in these Terms.

14.2 THIRD PARTY SERVICES

- (a) We may rely on third-party service providers, platforms, infrastructure, software and other suppliers to operate the Platform and provide the Platform Services, including in connection with payment processing, hosting, data storage, communications, analytics and other technical functionality.
- (b) You acknowledge that:
 - (i) the availability and functionality of third-party services may be outside our reasonable control;
 - (ii) third-party providers may change, restrict, suspend or discontinue their services, functionality, terms or access requirements from time to time;
 - (iii) changes to or interruptions in third-party services may affect the availability or functionality of parts of the Platform; and
 - (iv) we may modify, replace, restrict or discontinue our use of a third-party service where reasonably necessary for operational, technical, security, legal or legitimate commercial reasons.
- (c) Where reasonably practicable, we will take reasonable steps to minimise material disruption to the Platform Services arising from changes to third-party services within our control.
- (d) A change to a third-party service does not retrospectively alter the terms of a confirmed Booking or the Service Contract between you and the relevant Professional, except where required by law or expressly agreed by the relevant parties.
- (e) Where your use of a third-party service is subject to separate terms that apply directly to you, those terms may also apply to your use of that service. Where reasonably practicable, we will make those terms or a reference to them available through the Platform.
- (f) STUNNER ALERT is not responsible for an act, omission, outage or failure of a third-party provider to the extent that the matter is outside our reasonable control, but nothing in this section excludes, restricts or modifies any responsibility we have for our own acts or omissions or any right, guarantee, remedy or other protection that cannot lawfully be excluded, restricted or modified.

15 CONFIDENTIALITY

- (a) Each party must keep confidential and must not use or disclose any Confidential Information of the other party except as permitted by these Terms or where the information is otherwise lawfully available to that party.
- (b) A party may use or disclose Confidential Information:
 - (i) to the extent reasonably necessary to exercise its rights or perform its obligations under these Terms;
 - (ii) to its Personnel, professional advisers and service providers who reasonably need the information for those purposes and are subject to appropriate confidentiality obligations;
 - (iii) with the prior consent of the other party; or

- (iv) where required by law, a court or a government or regulatory authority.
- (c) STUNNER ALERT may disclose information you provide in connection with a Booking to the relevant Professional to the extent reasonably necessary to facilitate the Booking or enable the Professional to perform the Professional Services.
- (d) Each party must take reasonable steps to protect the other party's Confidential Information from unauthorised access, use or disclosure and, on request or termination, must promptly return or securely destroy that Confidential Information, except for copies required by law or retained in routine backups subject to continuing confidentiality obligations.
- (e) Nothing in this section prevents STUNNER ALERT from using or disclosing information that is not Confidential Information, including information that has been lawfully de-identified or aggregated so that it cannot reasonably be used to identify you, subject to our Privacy Policy and applicable law.

16 PRIVACY

- (a) We collect and handle personal information in connection with your Account, your use of the Platform and Platform Services, and Bookings made through the Platform.
- (b) The personal information we collect may include your name, contact details, Account information, service locations, booking history, location information, photographs or other information you provide through the Platform, together with technical, usage and analytics information collected through your use of the Platform. Payment information may be collected and processed by Stripe or another payment provider used in connection with the Platform.
- (c) We may use and disclose personal information to:
 - (i) create, maintain and administer your Account;
 - (ii) operate, maintain and improve the Platform and Platform Services;
 - (iii) facilitate and administer Bookings between you and Professionals;
 - (iv) provide the relevant Professional with information reasonably required in connection with a Booking or the Professional Services;
 - (v) facilitate payments and payment processing;
 - (vi) communicate with you about your Account, Bookings and use of the Platform;
 - (vii) detect, investigate and prevent fraud, misuse, security incidents or other unlawful activity;
 - (viii) send marketing or promotional communications where permitted by law and in accordance with any applicable consent or communication preferences; and
 - (ix) otherwise use or disclose personal information for the purposes described in our Privacy Policy.
- (d) We may disclose personal information to Professionals and third-party service providers where reasonably necessary to operate the Platform, provide the Platform Services, facilitate Bookings or payments, or otherwise carry out the purposes described in our Privacy Policy.
- (e) Some third-party service providers or their subprocessors may store, process or access personal information outside Australia. Further information about overseas disclosures and the locations involved, where applicable, is set out in our Privacy Policy.
- (f) Our Privacy Policy, available at [\[Privacy Policy URL\]](#), contains further information about how we collect, use, disclose, store and protect personal information and how you may request access to or correction of your personal information or make a privacy complaint.
- (g) We will handle personal information in accordance with our Privacy Policy and applicable law. Nothing in these Terms constitutes blanket consent to current or future privacy practices or excludes, restricts or modifies any privacy right or protection that cannot lawfully be excluded, restricted or modified.

17 LIABILITY

17.1 WARRANTIES AND LIMITATIONS

- (a) We will provide the Platform Services with due care and skill and in accordance with any consumer guarantees, rights or other obligations that cannot lawfully be excluded, restricted or modified.
- (b) You acknowledge and agree that:
 - (i) the Platform may from time to time contain errors, defects or interruptions or be temporarily unavailable;
 - (ii) the availability or operation of the Platform may be affected by technical issues, maintenance, third-party services, payment systems, communications networks or other matters outside our reasonable control;
 - (iii) information displayed through the Platform about a Professional or Professional Services may have been provided by the relevant Professional and may change or become inaccurate or out of date; and
 - (iv) STUNNER ALERT does not guarantee that the Platform will be uninterrupted, continuously available or free from every error or technical issue.
- (c) Where you notify us of a material technical issue affecting the Platform or Platform Services, we will take reasonable steps to investigate and, where reasonably practicable and appropriate, address the issue, without limiting any right or remedy available under the Australian Consumer Law or other applicable law.
- (d) To the maximum extent permitted by law, all representations, warranties and guarantees relating to the Platform or Platform Services that are not expressly set out in these Terms are excluded.

17.2 PROFESSIONAL SERVICES

- (a) The Professional Services are offered and supplied directly by the relevant Professional under the Service Contract between you and that Professional. The Professional, and not STUNNER ALERT, is the supplier of the Professional Services and is responsible for their performance. STUNNER ALERT does not provide, perform, direct, supervise or control the Professional Services and is not a party to the Service Contract.
- (b) To the maximum extent permitted by law, STUNNER ALERT does not represent, warrant or guarantee:
 - (i) the quality, safety, suitability, standard or outcome of any Professional Services;
 - (ii) that a Professional will be available, attend a Booking or complete the Professional Services;
 - (iii) that the Professional Services will meet your particular needs, preferences, expectations or subjective standards of satisfaction;
 - (iv) any particular artistic, aesthetic, photographic, styling, beauty or other subjective result or outcome from the Professional Services;
 - (v) that the Professional Services will commence or be completed at an exact time or within an exact duration where reasonable or minor timing variations arise in connection with their performance;
 - (vi) the accuracy, completeness or continued validity of information supplied by a Professional about their Professional Services, qualifications, licences, certifications, insurance, experience, availability or other attributes; or
 - (vii) the acts, omissions, conduct or performance of a Professional in providing or failing to provide the Professional Services.
- (c) You acknowledge that some Professional Services involve artistic judgement, professional discretion, individual characteristics and subjective preferences, and that results may vary between Customers. A difference between your expectations or preferences and the result of the Professional Services does not of itself constitute a failure by STUNNER ALERT to provide the Platform Services.

- (d) Any requirements imposed by STUNNER ALERT concerning a Professional's identity, qualifications, licences, certifications, insurance or eligibility to use the Platform are Platform eligibility requirements only. Those requirements do not make STUNNER ALERT the employer, provider or supervisor of the Professional and do not constitute a representation or guarantee by STUNNER ALERT as to the Professional's competence, safety, suitability, conduct or performance.
- (e) Subject to applicable law, the relevant Professional is responsible for the Professional Services they provide, including their performance, quality, suitability, safety and outcome and any loss, personal injury or property damage caused by their acts or omissions in connection with those Professional Services.
- (f) STUNNER ALERT may facilitate Bookings, communications, complaints and payments between you and a Professional without becoming responsible for the Professional Services or assuming the Professional's obligations under the Service Contract.
- (g) Nothing in this section excludes, restricts or modifies any consumer guarantee, right, remedy or other protection you may have against STUNNER ALERT or a Professional under the Australian Consumer Law or any other applicable law that cannot lawfully be excluded, restricted or modified.

17.3 AUSTRALIAN CONSUMER LAW

- (a) Nothing in these Terms excludes, restricts or modifies any consumer guarantee, right, remedy or other protection under the Australian Consumer Law or any other applicable law that cannot lawfully be excluded, restricted or modified.
- (b) Where the Australian Consumer Law applies, you may be entitled to a refund, resupply or other remedy where required by law.
- (c) Your rights and remedies in relation to the Platform Services supplied by STUNNER ALERT are separate from any rights and remedies you may have against a Professional in relation to the Professional Services supplied under the Service Contract.

17.4 LIMITATION OF LIABILITY

- (a) Subject to the Australian Consumer Law and any other liability that cannot lawfully be excluded or limited, STUNNER ALERT is not liable for loss or damage to the extent that it is caused or contributed to by:
 - (i) incomplete, inaccurate, out-of-date or misleading information provided by you;
 - (ii) your breach of these Terms or misuse of the Platform;
 - (iii) your failure to provide accurate Booking, service location or access information;
 - (iv) an act or omission of a Professional in connection with the Professional Services or Service Contract;
 - (v) the quality, performance, non-performance, cancellation or outcome of Professional Services;
 - (vi) an act, omission, interruption, error or failure of a third-party service provider that is outside our reasonable control, except to the extent the loss resulted from our failure to take reasonable care in relation to matters within our control; or
 - (vii) circumstances outside our reasonable control.
- (b) Nothing in this section excludes or limits STUNNER ALERT's liability to the extent that loss or damage is caused or contributed to by STUNNER ALERT's own breach of these Terms, negligence, fraud, wilful misconduct or failure to comply with an obligation that cannot lawfully be excluded or limited.

17.5 CONSEQUENTIAL LOSS

- (a) Subject to any liability that cannot lawfully be excluded or limited and to the maximum extent permitted by law, neither party is liable to the other for indirect, incidental, special or consequential loss arising out of or in connection with these Terms or the Platform Services, and any loss of profit, revenue, business opportunity, anticipated savings, goodwill or data is excluded only to the extent that it is properly characterised as indirect or

consequential in the circumstances; each party's aggregate liability arising out of or in connection with these Terms is limited to the greater of the Total Booking Price for the Booking giving rise to the claim and AUD 1,000, except for payment obligations, breach of confidentiality or privacy obligations, infringement of Intellectual Property Rights, fraud, wilful misconduct, personal injury or death, damage to tangible property, or liability that cannot lawfully be limited.

- (b) This exclusion does not apply to:
 - (i) fraud or wilful misconduct;
 - (ii) personal injury or death;
 - (iii) loss of or damage to tangible property; or
 - (iv) any liability that cannot lawfully be excluded or limited.

18 TERMINATION

18.1 TERMINATION BY YOU

- (a) You may stop using the Platform and close your Account at any time by following the process made available through the Platform or contacting us using the contact details made available on the Website or Platform.
- (b) Closing your Account does not automatically cancel a confirmed Booking or terminate the Service Contract between you and the relevant Professional. If you wish to cancel a Booking, you must do so in accordance with the cancellation provisions of these Terms and any applicable terms of the Service Contract.
- (c) Closing your Account does not entitle you to avoid or recover any amount that has become properly payable in connection with a Booking merely because you no longer wish to use the Platform, but does not affect any refund, Platform Credit or other remedy available under these Terms, the Service Contract, the Australian Consumer Law or any other applicable law.

18.2 SUSPENSION OR TERMINATION BY US

- (a) We may take reasonable and proportionate action to restrict, suspend or terminate your Account or access to all or part of the Platform where we reasonably believe that:
 - (i) you have materially breached these Terms and, where the breach is capable of remedy, you have failed to remedy it within a reasonable period after we notify you;
 - (ii) you have used the Platform unlawfully, fraudulently, abusively or in a manner materially inconsistent with its intended purpose;
 - (iii) you have engaged in conduct that creates or is reasonably likely to create a material safety risk to a Professional or another person;
 - (iv) you have engaged in harassment, threatening conduct, misuse of another person's information or other serious inappropriate conduct through or in connection with the Platform;
 - (v) you have attempted to circumvent the Platform or its booking or payment arrangements in breach of these Terms;
 - (vi) your use of the Platform creates or is reasonably likely to create a material security, payment, legal or regulatory risk;
 - (vii) your conduct infringes or is reasonably likely to infringe our Intellectual Property Rights or the rights of another person;
 - (viii) we are required to take the action by law, a court or a government or regulatory authority; or
 - (ix) the action is otherwise reasonably necessary and proportionate to protect the Platform, STUNNER ALERT, Professionals, other users or our third-party service providers from a material risk connected with the operation or integrity of the Platform.

- (b) Except where immediate action is permitted under these Terms, we will give you at least 7 days' prior written notice of a suspension or termination, state the specific reason for it and, where a breach is capable of remedy, allow at least 7 days to remedy the breach before the suspension or termination takes effect.
- (c) We may act immediately without prior notice or a cure period where reasonably necessary because of fraud, unlawful conduct, an urgent safety or security risk, serious harassment or threatening conduct, material payment or regulatory risk, serious infringement of rights, a court or government requirement or another urgent legitimate Platform-integrity issue. Where reasonably practicable, we will notify you of the action and reasons after it has been taken.
- (d) Where suspension rather than termination is sufficient to address the relevant issue, we will use suspension or another proportionate restriction rather than terminating your Account.

18.3 EFFECT OF TERMINATION

- (a) On termination of these Terms or closure of your Account:
 - (i) your right to access and use the Platform through your Account will end, subject to any limited access we reasonably make available for matters relating to an existing Booking, payment, complaint or dispute;
 - (ii) you will not be able to make new Bookings through the Account;
 - (iii) any rights, obligations and liabilities that accrued before termination will not be affected;
 - (iv) termination does not of itself cancel or terminate a Service Contract between you and a Professional, and any cancellation or termination of that Service Contract remains subject to its terms and applicable law;
 - (v) any existing Booking affected by the suspension or termination of your Account will be dealt with in accordance with these Terms, including the applicable cancellation, refund and Platform Credit provisions, and the applicable Service Contract;
 - (vi) we may retain, delete or otherwise handle User Data and other information associated with your Account in accordance with our Privacy Policy and applicable law; and
 - (vii) any provision of these Terms which by its nature is intended to continue after termination will continue to apply, including provisions relating to accrued payment obligations, intellectual property, confidentiality, liability and restrictions on misuse of the Platform.
- (b) Termination or closure of your Account does not affect any rights or remedies available to you, STUNNER ALERT or a Professional in respect of anything that occurred before termination.
- (c) Nothing in this section excludes, restricts or modifies any consumer guarantee, right, remedy or other protection under the Australian Consumer Law or any other applicable law that cannot lawfully be excluded, restricted or modified.

19 DISPUTE RESOLUTION

- (a) A party claiming that a dispute has arisen under or in connection with these Terms must not commence court proceedings relating to the dispute unless that party has complied with this section, except where the party seeks urgent interlocutory or injunctive relief, exercises a statutory consumer remedy, makes a complaint to a regulator, exercises a chargeback or payment right that cannot lawfully be restricted, accesses a tribunal or court that cannot lawfully be excluded, or exercises any other right or remedy that cannot lawfully be restricted.
- (b) A party seeking to resolve a dispute must give the other party written notice setting out reasonable details of the dispute.

- (c) After a dispute notice is given, each party must use reasonable endeavours to resolve the dispute in good faith.
- (d) If the dispute is not resolved within 14 days after the dispute notice is given, or within another period agreed by the parties in writing, either party may commence legal proceedings in relation to the dispute.
- (e) A dispute concerning the quality, performance, safety, cancellation, non-performance or outcome of the Professional Services, or an amount payable in connection with those Professional Services, is primarily a dispute between you and the relevant Professional under the Service Contract. STUNNER ALERT may facilitate communications between you and the Professional through the Platform but does not become a party to that dispute merely by doing so.
- (f) A dispute concerning the Platform or Platform Services supplied by STUNNER ALERT is between you and STUNNER ALERT and may be dealt with under this section.
- (g) Where a dispute concerns both the Professional Services and the Platform Services, the respective aspects of the dispute may be dealt with separately having regard to the service, obligation or conduct to which each aspect relates.
- (h) Nothing in this section prevents you from exercising any right or remedy against a Professional or STUNNER ALERT that cannot lawfully be excluded, restricted or delayed.

20 FORCE MAJEURE

- (a) STUNNER ALERT will not be liable for any delay or failure to perform an obligation under these Terms to the extent that the delay or failure is caused by an event or circumstance beyond its reasonable control (Force Majeure Event).
- (b) If a Force Majeure Event occurs, we will use reasonable endeavours to:
 - (i) notify you of the Force Majeure Event where reasonably practicable;
 - (ii) minimise the effect of the Force Majeure Event on the performance of our affected obligations; and
 - (iii) resume performance of the affected obligations as soon as reasonably practicable.
- (c) Our affected obligations will be suspended for the duration of the Force Majeure Event only to the extent that we are prevented or delayed from performing them.
- (d) A Force Majeure Event may include:
 - (i) fire, flood, storm, earthquake, natural disaster or other act of nature;
 - (ii) epidemic, pandemic or public health emergency;
 - (iii) war, terrorism, civil unrest, riot, sabotage or other similar event;
 - (iv) strike, industrial action or labour disruption outside our reasonable control;
 - (v) action, restriction, order or requirement of a government or regulatory authority;
 - (vi) failure or interruption of electricity, telecommunications, internet, hosting, payment processing or other essential infrastructure outside our reasonable control;
 - (vii) cyberattack or malicious interference that could not reasonably have been prevented by us; or
 - (viii) failure, suspension, interruption or unavailability of a third-party technology, hosting, payment, communications or other service provider on which the Platform or Platform Services depend, to the extent that the relevant event is outside our reasonable control.
- (e) A Force Majeure Event affecting STUNNER ALERT does not of itself excuse a Professional from obligations owed to you under the Service Contract, and any cancellation, rescheduling, refund or other consequence relating to Professional Services affected by circumstances beyond the Professional's control is a matter between you and the Professional under the Service Contract and applicable law.

- (f) If a Force Majeure Event materially prevents STUNNER ALERT from providing Platform Services relating to a confirmed Booking for more than 7 days or beyond the scheduled commencement time of the Professional Services, either party may cancel the affected Booking without penalty, and you will receive a prompt refund to the original payment method of amounts paid for services not provided, subject to applicable law.
- (g) Nothing in this section excludes, restricts or modifies any right or remedy that cannot lawfully be excluded, restricted or modified.

21 NOTICES

- (a) A notice or other communication under these Terms must be in writing and in English and sent by email:
 - (i) if sent to you, to the email address associated with your Account or most recently provided by you through the Platform or in connection with a Booking; and
 - (ii) if sent to us, to the email address specified for notices or contact purposes on the Website or Platform.
- (b) Each party must notify the other if its relevant email address changes.
- (c) Unless the sender knows or reasonably ought to know that an email was not successfully delivered, a notice sent by email will be taken to have been received:
 - (i) 24 hours after the email was sent, unless that time falls on a Saturday, Sunday or public holiday in Queensland, in which case it will be taken to have been received on the next business day in Queensland; or
 - (ii) when the recipient replies to the email, whichever occurs first.

22 GENERAL

22.1 GOVERNING LAW AND JURISDICTION

These Terms are governed by the laws of Queensland, Australia. Each party submits to the jurisdiction of the courts of Queensland, Australia and the courts entitled to hear appeals from those courts in relation to proceedings arising out of or in connection with these Terms, but nothing in this provision excludes any mandatory right, law, jurisdiction or forum that cannot lawfully be excluded.

22.2 WAIVER

- (a) A party does not waive a right under these Terms unless the waiver is in writing and given by that party.
- (b) A waiver in relation to a particular matter does not constitute a waiver of any other right or of the same right in relation to any other matter.

22.3 SEVERANCE

If any provision of these Terms is wholly or partly void, illegal or unenforceable, that provision is severed to the extent necessary without affecting the validity or enforceability of the remaining provisions.

22.4 JOINT AND SEVERAL LIABILITY

If two or more persons are each legally bound by the same obligation or liability under these Terms, that obligation or liability binds those persons jointly and severally. This provision does not impose personal liability on an employee or other representative who acts solely on behalf of a Represented Entity and is not otherwise legally bound by these Terms.

22.5 ASSIGNMENT

Neither party may assign, novate or otherwise transfer its rights or obligations under these Terms without the prior written consent of the other party, which must not be unreasonably withheld or delayed.

22.6 ENTIRE AGREEMENT

- (a) These Terms, together with any terms expressly incorporated into them, constitute the entire agreement between you and STUNNER ALERT in relation to your Account, access to and use of the Platform and Platform Services, and Bookings made through the Platform, and supersede any prior negotiation, communication, arrangement, understanding or agreement between you and STUNNER ALERT relating to the same subject matter.
- (b) These Terms do not constitute, replace or form part of the separate Service Contract between you and a Professional for the Professional Services, except to the extent these Terms expressly regulate your use of the Platform in connection with that Service Contract.

22.7 INTERPRETATION

Unless the context requires otherwise:

- (a) words in the singular include the plural and vice versa;
- (b) a reference to \$, dollars or an amount of money is a reference to Australian dollars;
- (c) words indicating a gender include every gender;
- (d) if a word or phrase is given a defined meaning, any other grammatical form of that word or phrase has a corresponding meaning;
- (e) a reference to a person includes an individual, corporation, authority, association, consortium, joint venture, partnership, trust and any other legal or commercial entity;
- (f) a reference to a party includes that party's legal personal representatives, successors and permitted assigns;
- (g) a reference to these Terms includes any document expressly incorporated into these Terms;
- (h) a reference to a document includes that document as amended, supplemented, replaced or novated from time to time, subject to any restrictions on variation contained in these Terms or applicable law;
- (i) headings are for convenience only and do not affect interpretation;
- (j) the words "including", "includes" and similar expressions are not words of limitation; and
- (k) a provision of these Terms will not be interpreted adversely to a party merely because that party was responsible for preparing it.

23 DEFINITIONS

Term	Definition
Account	means an account created through the Platform to access and use the Platform Services and make or manage Bookings.
Additional Charges	means any peak-time surcharge, travel fee, parking fee or other additional amount payable in connection with a Booking that is disclosed through the Platform before the Customer confirms the Booking or, where the amount cannot reasonably be determined in advance, disclosed together with the basis on which it will be calculated.
Admin Fee	means a reasonable administrative fee applicable to the cancellation of a Booking that is disclosed to the Customer through the Platform before the Customer confirms the Booking and does not exceed STUNNER ALERT's reasonable administrative costs directly arising from that cancellation.
Balance Payment	means the remaining 80% of the Total Booking Price payable in accordance with the Payment Processing provisions of these Terms, ordinarily charged approximately 24 hours before the scheduled commencement time of the Professional Services.
Booking	means a booking for Professional Services made or requested through the Platform between a Customer and a Professional.

Term	Definition
Confidential Information	means information of or provided by a party that is by its nature confidential, is designated by that party as confidential, or that the other party knows or ought reasonably to know is confidential, but does not include information that the receiving party can demonstrate: (a) is or becomes public other than through a breach of confidentiality; (b) was lawfully known to it without restriction before disclosure; (c) is independently developed without use of the disclosing party's Confidential Information; or (d) is lawfully received from a third party without a duty of confidentiality.
Customer	means a person who accesses or uses the Platform as a customer, including to browse Professionals, make or manage a Booking or receive Professional Services.
Force Majeure Event	has the meaning given in the Force Majeure section of these Terms.
Initial Payment	means an amount equal to 20% of the Total Booking Price payable when a Booking is confirmed in accordance with the Payment Processing provisions of these Terms.
Intellectual Property Rights	means any and all present and future intellectual and industrial property rights throughout the world, whether registered or unregistered, including copyright, trade marks, designs, patents, moral rights, circuit layout rights, trade, business, company and domain names, trade secrets, know-how, confidential information and other proprietary rights, and any rights to register, renew or enforce those rights.
Payment Provider	means Stripe Connect.
Personnel	means, in respect of a party, its officers, employees, contractors, subcontractors and agents.
Platform	means the STUNNER ALERT online marketplace and booking platform through which Customers may browse independent Professionals, view Professional Services, communicate in connection with proposed Bookings, make and manage Bookings and facilitate payments relating to those Bookings.
Platform Content	means materials made available through the Platform that are owned or licensed by STUNNER ALERT, including software, design, functionality, text, graphics, logos, trade marks, booking functionality, presentation and other content created by or for STUNNER ALERT, but excluding Third Party Content.
Platform Credit	means a credit issued by STUNNER ALERT for use towards a future Booking through the Platform in accordance with the cancellation, late-arrival, no-show and Platform Credit provisions of these Terms, including any conditions or expiry period disclosed when the credit is issued.
Platform Services	means the services supplied by STUNNER ALERT in operating the Platform, introducing Customers to Professionals and facilitating Bookings, communications and payments through the Platform, but excludes the Professional Services.
Professional	means an independent professional or business listed on the Platform that offers and supplies Professional Services directly to Customers, including makeup artists, hairstylists, nail technicians, photographers, videographers and event management professionals.
Professional Services	means the services advertised, offered or supplied directly by a Professional to a Customer in connection with a Booking, and does not include the Platform Services supplied by STUNNER ALERT.
Represented Entity	means a company, employer, organisation, government body or other legal entity on whose behalf a person creates an Account, uses the Platform, makes a Booking or accepts these Terms.

Term	Definition
Service Contract	means the separate contract formed directly between a Customer and a Professional for the Professional Services relating to a Booking, to which STUNNER ALERT is not a party.
Terms	means these terms and conditions, as updated from time to time in accordance with their terms.
Third Party Content	means content, information, photographs, listings, profiles, service descriptions, reviews or other materials supplied or made available by Professionals or other third parties through the Platform.
Total Booking Price	means the total amount payable by the Customer for a Booking as displayed through the Platform before the Customer confirms the Booking, including the price of the Professional Services, any Additional Charges that can reasonably be determined at that time, GST and any other mandatory or unavoidable amount required to be included in the displayed price by applicable law. It does not include an Additional Charge that cannot reasonably be determined in advance and is separately payable in accordance with these Terms.
User Data	means information or content you provide to STUNNER ALERT through the Platform or in connection with your Account or a Booking, including contact details, service location information, access information, booking information and other information you provide through the Platform.
Website	means the website at [Website URL] and any other website operated by STUNNER ALERT in connection with the Platform.